

Ankit Kumar vs State Of U.P. And 2 Others on 25 October, 2024

HIGH COURT OF JUDICATURE AT ALLAHABAD

Reserved

Neutral Citation No. - 2024:AHC:171248

Court No. - 87

Case :- CRIMINAL REVISION No. - 5993 of 2023

Revisionist :- Ankit Kumar

Opposite Party :- State Of U.P. And 2 Others

Counsel for Revisionist :- Vinod Singh

Counsel for Opposite Party :- G.A.,Gaurang Dwivedi

Hon'ble Manjive Shukla,J.

1. Heard Sri Vinod Singh, learned counsel appearing for the revisionist, learned A.G.A. appearing for the State and Sri Gaurang Dwivedi, learned counsel appearing for Opposite Parties No. 2 & 3.

2. The instant revision has been filed challenging therein the order dated 3.10.2023 passed by the Principal Judge, Family Court, Jalaun at Orai in Criminal Misc. Case No. 419 of 2021 (Smt. Kamini and Another Vs. Ankit Kumar) whereby, in exercise of power under Section 125 Cr.P.C., maintenance of Rs. 8,000/- per-month w.e.f. 06.07.2021 till 2.10.2023 and maintenance of Rs. 10,000/- per-month w.e.f. 3.10.2023 had been awarded in favour of Opposite Party No. 2 and further maintenance of Rs. 4,000/- per month w.e.f. 06.07.2021 till 2.10.2023 and maintenance of Rs. 5,000/- per month w.e.f. 3.10.2023 had been awarded in favour of Opposite Party No. 3 with a condition that he shall get the maintenance only till the date, he becomes major.

3. Facts of the case, in brief, are that the revisionist solemnized marriage with Opposite Party No. 2

on 08.02.2019 as per Hindu rituals. The Opposite Party No. 2 alleged that she was tortured by her husband and in-laws for demand of dowry and therefore, she and her minor son left the house of the revisionist and are residing with the parents of Opposite Party No. 2. The Opposite Party No. 2 filed case under Section 125 Cr.P.C. wherein she claimed that she is entitled for maintenance of Rs. 20,000/- per-month and her son is entitled for maintenance of Rs. 5,000/- per-month from the revisionist. The Opposite Parties No. 2 and 3 in their claim petition further claimed that the revisionist is a government servant and is working in the Passport Office at Sikandrabad and is drawing salary of Rs. 45,000/- per-month. The revisionist filed his reply in the case and alleged that Opposite Party No. 2 is suffering from 'Schizophrenia' and at the time of marriage of Opposite Party No. 2, this fact was concealed from the revisionist and therefore, he has filed a case under Section 12(1)(c) of the Hindu Marriage Act, 1955, which is pending.

4. The revisionist in his reply further stated that, in-fact his marriage with Opposite Party No. 2 is void ab initio and therefore, he is not under obligation to pay the maintenance to Opposite Party No. 2.

5. The Principal Judge, Family Court, Jalaun at Orai after considering the material placed before him by the parties, had decided Criminal Misc. Case No. 419 of 2021 vide judgement and order dated 03.10.2023 whereby maintenance had been awarded in favour of Opposite Parties No. 2 and 3.

6. Learned counsel appearing for the revisionist has argued that his marriage with Opposite Party No. 2 is a void marriage, as the fact that Opposite Party No. 2 is suffering from 'Schizophrenia' was concealed at the time of marriage therefore, he has already filed a case under Section 12(1)(c) of the Hindu Marriage Act, 1955, as such Opposite Party No. 2 is not entitled for maintenance under Section 125 Cr.P.C. It has further been argued that the documents to show that Opposite Party No. 2 is suffering from 'Schizophrenia' were placed on record before the Principal Judge, Family Court, Jalaun at Orai but in spite of that, case filed under Section 125 Cr.P.C. had been decided against the revisionist and liability for payment of maintenance to Opposite Party No. 2 had been put on him whereas, once it is established on record that marriage of the revisionist with Opposite Party No. 2 was due to concealment of material facts, he is not under legal obligation to pay any maintenance to Opposite Party No. 2.

7. It has also been argued on behalf of the revisionist that he is working on the post of Junior Assistant in the Passport Officer, Sikandrabad and is drawing only Rs. 34,000/- per month as salary therefore, it is apparent on the face of record that the Principal Judge, Family Court, Jalaun at Orai vide impugned order dated 3.10.2023 had awarded excessive maintenance of Rs. 15,000/- per-month. It has further been argued that the allegations of demand of dowry and torture levelled by Opposite Party No. 2 in her claim petition filed before the Principal Judge, Family Court, Jalaun at Orai are absolutely false and in-fact, when the concealment made by Opposite Party No. 2 and her parents was revealed and it was found that Opposite Party No. 2 is suffering with 'Schizophrenia', she on her own, started living separately and therefore, it is apparent that Opposite Party No. 2 is not living in the house of the revisionist without there being any sufficient cause, accordingly she is not entitled for maintenance and thus the impugned order dated 3.10.2023 on its face is erroneous

and illegal and is liable to be set-aside by this Court.

8. On the other hand, Sri Gaurang Dwivedi, learned counsel appearing for Opposite Parties No. 2 & 3 has argued that Opposite Party No. 2 is legally wedded wife of the revisionist and since she was subjected to mental and physical torture by her in-laws and additional dowry was demanded, she left the house of her husband along with her minor child therefore, it is apparent that Opposite Party No. 2, for sufficient reasons, is not living with her husband. It has further been argued that the revisionist is a government servant and is working in the Passport Office at Sikandrabad and is drawing salary of Rs. 45,000/- per-month therefore, he is under legal obligation to pay maintenance to Opposite Parties No. 2 & 3 and as such, the amount of maintenance awarded under the impugned order dated 3.10.2023 being commensurate to the monthly income of the revisionist, in noway, can be held to be excessive. It has also been argued on behalf of Opposite Parties No. 2 and 3 that the allegation that Opposite Party No. 2 is suffering from 'Schizophrenia' is absolutely false and it is an effort made by the revisionist so that he may avoid his liability to pay maintenance to Opposite Party No. 2 under Section 125 Cr.P.C. It has further been argued that the revisionist had filed few prescriptions issued by the doctors before the trial court but he did not produce any medical expert to prove that those prescriptions are in respect of 'Schizophrenia' and the medicines prescribed therein are for the disease 'Schizophrenia'.

9. Lastly, learned counsel appearing for Opposite Parties No. 2 and 3 has argued that the Principal Judge, Family Court, Jalaun at Orai while deciding Criminal Misc. Case No. 419 of 2021 vide impugned order dated 03.10.2023 had awarded maintenance in favour of Opposite Parties No. 2 and 3 which is commensurate with the income of the revisionist and as such, the impugned order dated 03.10.2023 does not call for any interference by this Court.

10. I have considered the rival arguments advanced by the learned counsels appearing for the parties and have perused the documents annexed with this revision.

11. I find that it is admitted fact between the parties that marriage of the revisionist and Opposite Party No. 2 was solemnized as per Hindu rituals on 08.02.2019. The Opposite Party No. 2 in her Claim Petition had taken stand and led evidence that she had been tortured by her in-laws, mentally and physically both, and additional dowry was demanded by her in-laws which compelled her to leave the house of her husband therefore, she has sufficient cause for not living with her husband. The revisionist, while filing reply in the matter, had taken stand that Opposite Party No. 2 and her parents, at the time of marriage, concealed the fact that Opposite Party No. 2 was suffering with 'Schizophrenia' which makes the marriage of the revisionist and Opposite Party No. 2 a void marriage and therefore, he had filed a case under Section 12(1)(c) of the Hindu Marriage Act, 1955 as such, in the said circumstances, the revisionist is not under legal obligation to pay maintenance to Opposite Party No. 2 under Section 125 Cr.P.C.

12. This Court is of the view that the proceedings under Section 125 Cr.P.C. are summary in nature therefore, in the said proceedings, validity of the marriage cannot be decided in strict sense. The Opposite Party No. 2 had taken stand in her claim petition and had led evidence before the Principal Judge, Family Court, Jalaun at Orai to prima-facie prove that she had been subjected to physical

and mental torture by her in laws and additional dowry had been demanded and therefore, she had been able to establish her case that for sufficient reasons, she is not residing with her husband. So far as ground taken by the revisionist before the Principal Judge, family Court, Jalaun at Orai that Opposite Party No. 2 concealed the fact that she is suffering from 'Schizophrenia' at the time of marriage and in the result the marriage is null and void, is concerned, it is noteworthy that the revisionist before the trial court had filed certain medical prescriptions and on that basis, he has claimed that Opposite Party No. 2 is suffering with 'Schizophrenia' but he had not produced any medical expert to prove that those medical prescriptions are in respect of disease 'Schizophrenia' and the medicines advised therein are for the said disease. The Principal Judge, Family Court, Jalaun at Orai had recorded categorical findings in regard to the aforesaid in the impugned order dated 03.10.2023. The relevant paragraphs of the impugned order dated 03.10.2023 are extracted as under:

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Virender Kumar Singh Kushwaha, JT 2010 (11) SC132, "Construing the term 'wife' broad and expansive interpretation should be given to term 'wife' to include even those cases where a man and woman have been living together as husband and wife for a reasonably long period of time, strict proof of marriage should not be a pre- condition for maintenance."

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"No wife shall be entitled to receive an (allowance for the maintenance or the interim maintenance and expenses of proceeding, as the case may be,) from her husband under this section if this section if she is living in adultery, or if, without any sufficient reason, she refuses to live with her husband, or if they are living separately by mutual consent."

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1. The object of such proceedings is only to prevent vagrancy and make a provision for destitute women or child. The provisions Compelled those who are under an obligation to support those who are unable to support themselves.

2. Section 125 is a measure of social justice, falling within the constitutional sweep of article 15(3) of the Constitution, intended to protect the weaker sections like women and children.

3. The object of the section is to compel a man to perform the moral obligation which he owes to society, in respect of his wife and children, so that they are not left beggared and destituted on the scrap heap of society and there, by driven to a life of vagrancy, immorality and crime for their subsistence. The jurisdiction of the magistrate is preventive and not remedial. Certainly, it is not punitive.

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° i † "Preeti Jain vs Kunal Jain and another(AIR 2016 Rajasthan 153 (Jaipur Bench) 14 i i ¢ §

Family courts proceedings- Admissibility of electronic records- Husband Seeking to produce video clipping recorded through pin hole Camera establishing wife & extra Marital relationship- Benefit of privileged communications between husband and wife is not available in Family Courts proceedings- Clipping from Pinhole camera with hard disk memory is primary evidence- Thus Compliance of S 65B of Evidence Act is not necessary. μ i i

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Shiv kumar Singh vs State of U.P. & Ors. [2007(2)A.L.J. 560] 10 i “ :- " ' , [therefore, hold that the maintenance to Smt. Neeru(respondent No.2) cannot be refused on the ground that the revisionist's marriage with respondent No. 2 was not a legal marriage or was a void marriage. For the purpose of maintenance allowance she was the wife of the revisionist within the meaning of Section 125Cr.P.C." i ¢ «- i « “ , “

¢ «- i « 125 i « ' 2 3 ¢ § § 1, 2 £ § ¢ «- i « § i ° ' ⌘ § £ Chaturbhuj vs Sita Bai (2007 AIR SCW

7416(From: Madhya Pradesh) - † i « ¢ i ° ¢ i i ¢ «- i « ' □ i i « ¢ «- i « “ § i « ."

13. Thus from the aforesaid categorical findings recorded by the Principal Judge, Family Court, Jalaun at Orai in the impugned order dated 03.10.2023, it is apparent that as on date Opposite Party No. 2 is legally wedded wife of the revisionist and for sufficient reasons, she is not living with her husband therefore, she is entitled for award of maintenance under Section 125 Cr.P.C.

14. Now the next question before this Court is regarding quantum of maintenance i.e. whether the Principal Judge, Family Court, Jalaun at Orai vide impugned order dated 03.10.2023 had awarded maintenance to Opposite Parties No. 2 and 3 commensurate with the income of the revisionist. In that regard, this Court finds that it is admitted on the record that the revisionist is a government servant and is working on the post of Junior Assistant in the Passport office at Sikandrabad and is drawing monthly salary. It had also come on record that the revisionist's father is owner of certain agricultural land and therefore, it can easily be inferred that some income out of the agricultural land may be available for the use of the revisionist. The Principal Judge, Family Court, Jalaun at

Orai in the impugned order dated 03.10.2023 had recorded categorical findings in respect of the financial status and monthly income of the revisionist and thereby had drawn conclusion in respect of the quantum of maintenance to be awarded in favour of Opposite Parties No. 2 & 3. For ready reference, the relevant portion of the impugned order dated 03.10.2023 is extracted as under:

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Vallabhaneni Yedukondalu v. Vallabhaneni Nagewanapara, 2000
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15. In view of the aforesaid categorical findings recorded by the Principal Judge, Family Court, Jalaun at Orai, it is apparent that the revisionist is a government servant and is drawing handsome salary therefore, this Court is of the view that the amount of maintenance awarded in favour of Opposite Parties No. 2 and 3 under impugned order dated 3.10.2023, in noway can be said to be excessive.

16. In view of the aforesaid discussion, I do not find any illegality or infirmity in the impugned order dated 3.10.2023 passed by the Principal Judge, Family Court, Jalaun at Orai in Criminal Misc. Case No. 419 of 2021.

17. Accordingly in view of the aforesaid reasons, this revision lacks merit and is hereby dismissed.

Order Date :- 25.10.2024 A. Mandhani